

		as discovery sanctions." <i>In re Marriage of Moore, supra</i>, 102 Cal. App. 5th at 1301 (emphasis added). Having considered the aforementioned principles, the Court finds that monetary sanctions in the amount of \$4,860.00 sought by Defendant are reasonable and appropriate. Accordingly, Plaintiff's Motions are DENIED and monetary sanctions are IMPOSED upon Plaintiff's counsel of record, Gleason and Bigonger LLP, in the total collective amount of \$4,860.00, pursuant to California Code of Civil Procedure section 2023.010, due and payable to Defendant's counsel of record, Godes and Preis LLP, no later than sixty (60) days after receiving notice of this Order. Defendant to give notice.
3.	<u>30-2023-01318571-CU-BC-NJC</u> Brower Law Group, APC vs. Feathers	Before the Court is a Motion to Compel Deposition Testimony and Sanctions, brought by plaintiff Brower Law Group, APC, ("Plaintiff") against defendant Jess Feathers ("Defendant"). ROA 94 Plaintiff requests an order, pursuant to California Code of Civil Procedure Section 2025.450 compelling Defendant to attend a deposition and provide testimony. Additionally, Plaintiff seeks sanctions against Defendant and Defendant's counsel in the amount of \$3,000 payable to Plaintiff. ROA 94 The Court notes that, pursuant to its minute order (ROA 104), both parties submitted on the Court's tentative ruling, and Defendant's deposition was ordered to proceed on August 12, 2026. Accordingly, the <i>only</i> remaining issue for the Court to address on the merits is sanctions. The Court further notes that Defendant's opposition was untimely filed on September 8, 2026. Accordingly, the Court will exercise its discretion to only consider the Plaintiff's declaration submitted in support of the motion. ROA 94 p. 8. Sanctions re: Motion to Compel Deposition

	When a court grants a motion to compel under Section 2025.450, “[t]he court <i>shall</i> impose a monetary sanction under Chapter 7 . . . in favor of the party who noticed the deposition . . . <i>unless</i> the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Cal. Civ. Proc. Code § 2025.450(g)(1) (emphasis added). The term “substantial justification” means “a justification that ‘is clearly reasonable because it is well grounded in both law and fact.’” <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1287 (2024) (quoting <i>Doe v. U.S. Swimming, Inc.</i>, 200 Cal. App. 4th 1424, 1434 (2011)). To avoid sanctions, a party may show “substantial justification” for his or her position—i.e., a rational basis to conclude that the party’s failure to fulfill its discovery obligations was justified. <i>Pollock v. Super. Ct.</i>, 93 Cal. App. 5th 1348, 1358 (2023) (citing <i>Foothill Properties v. Lyon/Copley Corona Associates</i>, 46 Cal. App. 4th 1542, 1557 (1996)); <i>see also</i> Cal. Civ. Proc. Code § 2030.090(d); <i>U.S. Swimming, Inc.</i>, <i>supra</i>, 200 Cal. App. 4th at 1435. The Court “must make an explicit finding this exception exists,” however, “the court <i>need not</i> make an explicit finding the exception does not exist” <i>Parker v. Wolters Kluwer U.S., Inc.</i>, 149 Cal. App. 4th 285, 294 (2007) (emphasis added). Here, the Court does not find, and Defendant does not offer, any substantial justification for Defendant’s failure to either raise objections to Plaintiff’s deposition notice or to appear at Plaintiff’s properly noticed deposition. Nor do the facts indicate that imposing monetary sanctions will result in an injustice to the Defendant. Accordingly, sanctions are mandatory and appropriate. Proper Assignment of Sanctions Liability California Code of Civil Procedure Section 2023.030 permits a court to impose monetary sanctions on “one engaging in the misuse of the discovery process, or any attorney advising that conduct . . .” or any party who “unsuccessfully assert[s] that another has engaged in the
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	misuse of the discovery process, or on any attorney who advised that assertion, or on both.” Cal. Civ. Proc. Code § 2023.030(a). Courts <i>shall</i> impose monetary sanctions absent a finding “that the one subject to the sanction acted with substantial justification.” <i>Id.</i> When the misconduct is clearly attributable to one party, courts should generally sanction only that party. However, when monetary sanctions are sought against an attorney for client misconduct, the court <i>must find</i> that the attorney advised the client to engage in the sanctionable conduct. <i>Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 799 (2020) (emphasis added). The burden then shifts to the attorney to prove that they did not provide such advice. <i>Id.</i> (citing <i>Ghanooni v. Super Shuttle</i>, 20 Cal. App. 4th 256, 260-261 (1993)); compare <i>Corns v. Miller</i>, 181 Cal. App. 3d 195, 200-201 (1986) (a court did not err in ordering monetary sanctions against an attorney where the attorney did not submit an opposition to the motion for sanctions, did not appear at the hearing, and failed to discharge his burden of proving he did not counsel disobedience) with <i>Kwan Software Eng’g, Inc. v. Hennings</i>, 58 Cal. App. 5th 57, 83 (2020) (finding substantial evidence that attorneys did not advise disobedience where attorneys provided multiple declarations, under penalty of perjury, in addition to e-mails and testimony in their defense). If the <i>client</i> engaged in the misconduct, for example, by refusing to answer discovery, hiding documents, or failing to appear for deposition, then sanctions should be imposed upon them. See <i>Ghanooni, supra</i>, 20 Cal. App. 4th at 261 (finding no liability for counsel for monetary sanctions where client refused to submit to x-rays and attorney’s declarations shows attorney attempted to convince client to comply). If the <i>attorney</i> is responsible, for instance, by instructing a client not to answer without substantial justification, failing to meet and confer in good faith, or failing to provide timely responses, the sanction can be imposed directly on the attorney. See generally <i>Ghanooni, supra</i>, 20 Cal. App. 4th at 260-261; <i>Ellis v. Toshiba America Info. Sys.</i>, 218 Cal. App.
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	4th 853, 879-80 (2013); <i>see Deck v. Developers Inv. Co., Inc.</i>, 89 Cal. App. 5th 808, 829-832 (2023). If the Court finds that both share responsibility, then sanctions can be imposed jointly and severally. <i>See generally Cornerstone, supra</i>, 56 Cal. App. 5th at 799. Here, the Court does not find that Defendant's failure to raise objections to Plaintiff's deposition notice nor to appear at Plaintiff's properly noticed deposition were attributable to client misconduct. Accordingly, sanctions are appropriate against Defendant's counsel only. Amount of Sanctions Three principles guide the award and amount of attorney's fees and costs imposed as a discovery sanction. <i>See Cornerstone, supra</i>, 56 Cal. App. 5th at 790-91 (compulsion, causation, and reasonableness). "The amount of monetary sanctions is limited to the 'reasonable expenses, including attorney's fees' that a party incurred as a result of the discovery abuse." <i>Cornerstone, supra</i>, 56 Cal. App. 5th at 791 (quoting Cal. Civ. Proc. Code § 2023.030(a)). The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award. <i>Id.</i>, (citing <i>Parker, supra</i>, 149 Cal. App. 4th at 294). "After a motion to compel discovery has been filed, further expenses incurred in meeting and conferring on the discovery dispute, whether it be through private mediation or normal channels of communication, are not compensable as discovery sanctions." <i>In re Marriage of Moore, supra</i>, 102 Cal. App. 5th at 1301 (emphasis added). Having considered Plaintiff's declaration and calculation of the costs incurred in bringing this motion, the Court finds that Plaintiffs are entitled to the reasonable sanctions award of \$1,500. Accordingly, the Court issues the following Order: The Court IMPOSES monetary discovery sanctions upon
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		Defendant's counsel, Price Caspino LLP, in the total collective amount of \$1,500.00, due and payable to Plaintiff's counsel, Brower Law Group, APC, no later than thirty (30) days after receiving notice of this Order. Plaintiffs shall give notice.
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